

22AHCV01061 22AHCV01061

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-06
Motion: MOTION FOR TWO JURY PANELS
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Case Number: 22AHCV01061 Hearing Date: August 6, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

MARIO GARCIA, et al.,

Plaintiff(s),

vs.

JOANNA
ESQUIVEL, et al.,

Defendant(s).

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CASE NO.: 22AHCv01061

[TENTATIVE]

ORDER RE: MOTION FOR TWO JURY PANELS

Dept.

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8:30

a.m.

August 6,

2026

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Defendants Joanna Esquivel, Juan

Molina, and Maria De Jesus Meza Hernandez (collectively, "Defendants") move for an order directing that each phase of trial shall have a separate jury, including separate panels and separate sessions of juror selection. Code of Civil Procedure section 598 provides the statutory basis for separate jury panels in bifurcated trials. The court may order that the trial of any issue precede the trial of any other issue when doing so would promote the convenience of witnesses, the ends of justice, or the economic and efficiency of handling the litigation. (Code Civ. Proc., § 598.) Code of Procedure section 598 expressly addresses the jury composition for subsequent phases, providing that after the first phase, the remaining issues shall be tried "before the same or another jury, as ordered by the court either upon its own motion or

upon the motion of any party.” (Id.)

Defendants argue that two jury panels are necessary to preserve the integrity of the distinct factual issues presented in each phase of trial. The first phase involves determining whether Plaintiff maintained insurance at the time of the accident while the second phase assesses liability and damages. Defendants argue that a single jury creates a substantial risk that jurors will associate their determination of Plaintiff’s insured status with his ability to recover non-economic damages, which would unfairly prejudice Defendants.

In opposition, Plaintiff argues that two juries are unnecessary because insurance coverage is not a threshold issue that would shorten trial. Plaintiff claims that a limiting instruction is sufficient to address any issues of prejudice, but the Court agrees with Defendants that it is not realistic to expect jurors to disregard what they might have learned or surmised during voir dire about Plaintiff’s alleged pain, suffering, and other non-economic damages when ruling on a narrow issue of insurance coverage. Conversely, there is no practical way to voir dire a single venire for the selection of a jury expected to sit on both phases without alluding to the full scope of the trial. Furthermore, if Plaintiff is precluded from recovering non-economic damages as a result of the first phase of trial, the second phase will be shortened because there will be no need to present evidence or argument regarding that category of damages.

In light of the foregoing, Defendants’ motion is GRANTED.

Dated
this 6th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided

on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.